Legal Status 10/2026 (R5)

23 Oct 2026 · Who supervises us, which deadlines apply, which role we hold – an assessment, not legal advice.

What is it?

The legal check box of the AI memorandum and the roadmap guardrails carried the status of August 2026. Since then the Digital Omnibus is in force, Germany has an AI act, the liability directive is off the table, and the Commission has specified Art. 50. Four points, once and clean.

What changed

• Digital Omnibus (27 Jul 2026): high-risk deadlines moved to 2 Dec 2027 and 2 Aug 2028 – Art. 50 unchanged since 2 Aug 2026. Deferred deadlines do not mean dropped duties.
• KI-MIG (29 Jul 2026): the Bundesnetzagentur is market surveillance, contact and complaints authority; fines are the last resort after orders
• AI Liability Directive dropped: liability runs through product liability, software is a product – whoever embeds or modifies the tool commercially also checks Art. 25 (change of role)
• Registration nuance (Art. 49(2)): an exemption under Annex III No. 4 must be documented and registered – principle 6 avoids the scope instead

What it means for the software

All built already. Art. 4 → llm literacy (R4); Art. 50 → banner, marker, llm approve (R3); Annex III → teams not persons down to the raw file (R1); source text is data (R2). The legal status confirms the architecture, it does not change it.
The memorandum follows later. The check-box addendum is ready as a v2.3 candidate; publication after the next core-group meeting.
An assessment, not legal advice. Every paragraph carries the note; check with counsel before rollout.

Where it lives

```
docs/portfolio_roadmap_solution-lagebild.md  # legal guardrails, addendum 10/2026
docs/modules/llm.md                           # legal frame of the module (table)
```